

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-07

MARINE TRANSPORT LOGISTICS, INC.

COMPLAINANT

v.

CMA CGM (AMERICA) LLC

RESPONDENT

JOINT MOTION TO STAY PROCEEDINGS

Complainant Marine Transport Logistics, Inc. ("MTL") and Respondent CMA CGM (America) LLC ("CMA") hereby jointly submit this motion requesting that Your Honor issue an order staying all proceedings in the above-captioned matter due to ongoing mediation discussions.

As of October 23, 2018, CMA and MTL (hereinafter collectively referred to as "the Parties") are actively engaged in mediation through the Federal Maritime Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS"). Given the ongoing status of settlement discussions through CADRS mediation, the Parties hereby jointly request a stay of this proceeding until they exhaust the potential for settlement through CADRS mediation. Given

the potential for settlement, it would be unreasonable to proceed with the proceeding at this time. A stay would conserve the resources of the FMC and the Parties.

For the avoidance of doubt, the Parties understand and agree that the stay requested herein shall be lifted upon unilateral application of either MTL or CMA to Your Honor requesting a lift of the stay. In the event the stay is lifted, the Parties agree the timeline for proceeding in the above-captioned matter shall be extended to provide at allow at least 30 calendar days following the date when the stay is lifted for either Party to submit Initial Disclosures or responses to Discovery.

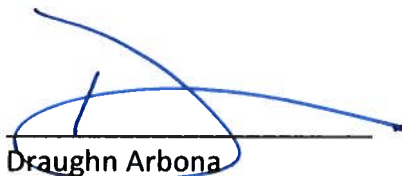
The Parties have conferred regarding this Joint Motion to Stay Proceedings in accordance with 46 CFR 502.71(a), and both Parties support this joint submission.

CONCLUSION

WHEREFORE, the Parties respectfully request that this Joint Motion to Stay Proceeding be granted, and that Your Honor issue an Order staying this action and all associated proceedings and deadlines.

Dated: October 25, 2018

Respectfully submitted,



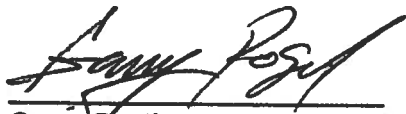
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Attorney for Complainant Marine Transport Logistics

CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true and correct copy of the foregoing Joint Motion to Stay Proceedings upon all parties identified below via electronic mail:

Mr. Garry Pogil
112 West 34 Street, 18th Floor
New York, NY 10120
Attorney for Complainant

This 25 day of October 2018.



Draughn Arbona
Counsel for Respondent